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Hang the Truth

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Those arguing that Mohammad Afzal's death sentence should not be commuted to life imprisonment are doing so on the grounds that a) the Indian courts pronounced the sentence after a fair trial and appealing to the President for intervention would be undermining the judiciary and b) it would send out a wrong message— that India is a weak State, soft on terrorism. Both arguments are flawed.

First, the Presidential review is hardly illegal or controversial, enshrined as it is in the Indian Constitution under Article 72, precisely to check cases where the death penalty is deemed as too harsh a sentence or in cases where there has been a miscarriage of justice. Second, the Supreme Court had a choice of sentencing Afzal under two laws for conspiracy and chose the harsher (Sec 120B read with Sec 302 IPC), not because it was the only law that would serve the purpose but because *it believed that only the death sentence could satisfy the Indian public:* '. . . the collective conscience of the society (sic) will only be satisfied if capital punishment is awarded to the offender.'[1]

So the court projecting the imagined desires of an imagined society tosses the ball into the court of the citizens of India, and the citizens of India, citing the judgement, toss the ball right back into the courts in an absurd game of circular logic.

The second argument of 'sending out a wrong message' is intimately tied up with assumptions of Afzal's guilt. Television shows are full of people indignantly proclaiming Afzal to be a terrorist and the mastermind of the Parliament attack.

Both are patently false.

The investigation agencies and the prosecution named three masterminds: Maulana Masood Azhar, chief of Jaish-e-Mohammad, and the prisoner